

Riverside Booksellers Ass'n v. City of Fairmont - Judgment

Judgment in Riverside Booksellers Ass'n v. City of Fairmont. Procedural posture:

District court denied a preliminary injunction against a city licensing ordinance, and appellant seeks emergency relief pending appeal. Record material: No district-court stay motion appears in the initial appellate record. Issue: District-court-first stay requirement. Standard of review: procedural prerequisite reviewed for abuse or practicality. Record excerpt: District docket with no stay motion. The docket lists the injunction denial and notice of appeal but no stay or injunction pending appeal motion. Nature of suit: Civil Rights - First Amendment. Lower tribunal: U.S. District Court for the Northern District of West Virginia.